

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

August 11, 2026

10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	Schiller vs. Fivefold Properties Dunnegan, LLC 24-01380115	Motion to Enforce Court Order Plaintiff Shanti Schiller ("Plaintiff") will and hereby does move the Court for an order (1) compelling Defendant Jennifer Leonard ("Defendant") to comply with the Court's February 5, 2026 order (the "Order"); (2) imposing monetary sanctions upon Defendant in the sum of \$6,107.00 for reasonable attorneys' fees and costs incurred in connection with Plaintiff's efforts to enforce the Order; and (3) imposing monetary sanctions upon Defendant in the sum of \$1,500.00, payable to the Court, for her failure to comply with the Order. Initially, this Motion was originally on calendar for 7/7/2026. However, at the hearing, continued this motion to 08/11/2026 at 9:30 am for MP to serve Defendant Leonard at 220 Newport Center Drive, 11, Newport Beach, CA 92660; and via email. (ROA 353.) As of 8/4/2026, there is no proof of service in the

		Court's file indicating MP has complied with the Court's order. As such, the Motion is taken off calendar.
102	Albert vs. Microsoft Corporation 25-01524620	Demurrer to First Amended Complaint Demurrers to the 1st, 2nd, 3rd, 4th, 5th and 6th causes of action of plaintiff Stacy Alberts First Amended Complaint are SUSTAINED with leave to amend. This ruling is made on the ground that plaintiff did not file her administrative complaint with the California Civil Rights Department ["CRD"] within three years from her resignation as required by Government Code §12960(e)(3). The Court makes no ruling on other grounds for demurrer raised by Microsoft. The judicially noticed documents filed in this case establish that Ms. Albert resigned from her employer Microsoft on January 20, 2021. She alleges that she did so because she was constructively terminated. That was the date of accrual of all causes of action alleged. Judicially noticed documents also establish that Ms. Albert did not file her administrative complaint with the CRD until 07/08/25, about a year and a half after the statutory deadline. Thus, as it stands before the Court at this time, the only issue is whether a basis for tolling the statute of limitations applies. The Court concludes that the continuing violation doctrine does not because it is inapplicable on these facts. The only doctrine that may operate to extend the time to file with the CRD is the doctrine of equitable tolling. The three-year deadline for filing CRD charges is subject to equitable tolling. [<i>Downs v. Department of Water & Power of City of Los Angeles</i> (1997) 58 CA4th 1093, 1102] Under CA law, the application of equitable tolling applies where a plaintiff who has a choice of legal remedies to pursue one remedy without simultaneously pursuing